Why BART Got Faulty Train Controls

By HARRE W. DEMORO
Tribune Staff Writer

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Westinghouse Electric Corp. was informed in writing in 1971 that its BART automatic train control system need not detect the location of maintenance vehicles, such as the one involved in the fatal accident of Jan. 19.

And Westinghouse also was informed that the automatic system was not expected to meet standards that were imposed on the equipment a year later by the California Public Utilities Commission.

BART has sued Westinghouse, alleging the firm delivered equipment that was unreliable and defective. Among the

Exclusive

points BART is seeking to make against Westinghouse is that the automatic control equipment does not properly detect the location of trains.

The Tribune learned about the documents through a letter written on Feb. 19 of this year to BART President Richard G. Clark by Dr. Woodrow E. Johnson, vice president and general manager of the Westinghouse transportation division.

In that letter, Dr. Johnson expresses "continuing concern" over BART's "sweeping under the rug" the automatic control problems. Dr. Johnson said that BART is expecting the equipment to perform at a level much higher than called for in the specifications, and at a standard higher than the equipment was intended to meet.

"The recent tragic accident involving a train and a maintenance vehicle . . . again emphasizes the necessity for all parties to understand the capabilities and limitations of the train detection system and to act accordingly," Johnson wrote Clark.

BART is not paying close attention to its operating and safety rules while blaming every malfunction and accident on Westinghouse, Johnson added.

Johnson told Clark that the contract between BART and Westinghouse for the automatic system provides that "in the event of any doubt or question" about the meaning of the specifications for the automatic system, the joint venture engineers shall make a final decision. That was Parsons Brinckerhoff-Tudor-Bechtel, which also has been sued by BART, for alleged defects in the system.

"When the question of train detection sensitivity and the detection of maintenance vehicles was raised in the spring of 1971, the (joint venture) engineer established specific test procedure," Johnson wrote Clark. He then cites the letter and its file number.

The train control system depends on contact between the train wheels and the rails to short an electrical circuit. This is called "shunting" in railway signal terms.

The joint venture prescribed a specific electrical formula and Johnson says the system performs according to the electrical formula outlined in the letter.

Another letter written by the engi-

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AP Photo

CHARLES GARRY, BILL WALTON
S.F. attorney and basketball star

Hearst Deal Try Denied

The former lawyer for Jack Scott denied published reports Saturday that the controversial sports figure may be trying to bargain with the FBI for Patricia Hearst's safe surrender.

"That's not true," said attorney Charles Garry in San Francisco.

Garry also told The Associated Press he doesn't believe Scott "has any idea of the whereabouts of Patty Hearst" and wanted only to prevent bloodshed "if he ever knew where she was."

Scott's name figures in a growing number of reports that the fugitive newspaper heiress has returned to the West Coast area where she disappeared 13 months ago.

Garry said Scott spoke personally by telephone to two FBI agents Friday and told them to get in touch with a lawyer "to find out what the hell they (the FBI) want to talk to him about." Garry refused to identify the lawyer.

The FBI wants to question Scott and his wife, Micki, about a farmhouse hideout in eastern Pennsylvania where Miss Hearst and "Symbionese Liberation Army" fugitives Bill and Emily Harris may have lived for several weeks last fall.

Garry represents pro basketball star Bill Walton of the Portland Trailblazers. Walton was questioned by the FBI in San Francisco this week because the Scotts, according to Walton, live in his house near Portland, Ore. Walton returned to Portland on Saturday, Garry said.

Until Friday, Garry represented Scott as well.

"I represented Scott until I heard from another lawyer, a friend of mine, that Scott had asked him to represent him. This was done by a message. Until last night, Friday, Scott hadn't even talked to the lawyer."

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Aristotle Onassis Dies

Quiet End For Greek Magnate

PARIS (AP) — Aristotle Onassis, a poor refugee who fought his way up to become the Golden Greek of the international jet set, died Saturday in the American Hospital in suburban Neuilly. He was 69.

"He died without suffering," said a hospital communique, which attributed death to a broncho-pulmonary infection.

The hospital said Jacqueline Kennedy Onassis was in New York when death came at 12:30 p.m. (4:30 a.m. PDT) to her husband.

With her secretary, she left Kennedy Airport — named after her first husband, the late President John F. Kennedy — Saturday night aboard an Air France jet.

It departed at 4:25 p.m. and was due in Paris at 7 a.m. local time.

John Meyer, a family spokesman, said Caroline Kennedy and John Kennedy accompanied their mother, but a Trans World Airlines spokesman said Caroline would leave today with Mrs. Hugh Auchincloss, the widow's mother.

A total of six police officers, Secret Service agents and private security men surrounded Mrs. Onassis as, grim-faced and silent, she left her Fifth Avenue apartment dressed in a lightweight black coat for a limousine ride to the airport.

About 150 gawkers, one of whom shouted, "We love you, Jackie!" thronged the sidewalks outside, opposite the Metropolitan Museum of Art.

Onassis, who partayed the $80 his father gave him at 16 into a shipping and airline empire estimated far in excess of $800 million, will be buried on his Greek island of Scorpios, sources in Greece said.

Family friends said the "obvious" site was next to the grave of his son Alexander, who died after a plane crash two years ago.

Onassis' daughter was by his side as his condition worsened during the night, hospital director Perry Cully said.

He entered the hospital on Feb. 6 suffering from several ailments, including myasthenia gravis, a progressive weakening of the voluntary muscles. While the disease was said to have been arrested, it was thought to have contributed to the severe respiratory problems which at one point forced doctors to put him in an oxygen tent.

Doctors said he also had a bad heart, and his gall bladder was removed three days after entering the hospital.

Onassis' marriage to Jacqueline Bouvier Kennedy on Oct. 20, 1968 — five years after the assassination of President John Kennedy — was seen by many as the crowning achievement of a glittering career.

He built the largest private shipping fleet in the world, had his own airline and sailed one of the world's most opulent yachts while amassing a fortune

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AP Photo

GREEK MILLIONAIRE ARISTOTLE ONASSIS DIES IN PARIS
He entered French hospital Feb. 6 after respiratory trouble

Tragedy Again For Jackie

NEW YORK (AP) — Once more Jacqueline Kennedy Onassis must wear black.

First there was Patrick, her infant son who died from a lung disease. Then there was her husband, John, felled by an assassin's bullet as he sat at her side. Next was Robert, her brother-in-law, also felled by an assassin.

And now her second husband, the man she called "Ari," is dead.

Her second-born son, Patrick Bouvier, died Aug. 7, 1963, when she was the First Lady of the United States. He was the third child she bore in the 10 years since she had married John Kennedy, then a young congressman.

She only held her new baby twice before hyaline membrane disease fatally struck the baby's breathing after 39 hours and 12 minutes of life.

She was barely out of mourning black in the fall of 1963, when tragedy struck again in Dallas, Tex. As she sat next to her husband in the presidential limousine on Nov. 22, shots rang out and John F. Kennedy was dead.

Photographs printed around the world showed a stunned widow, her dress still stained by her husband's blood, as she flew to Washington with the coffin containing the body of the man who had been the 35th President of the United States.

She developed a close relationship with her brother-in-law, Robert.

Five years after her husband's death, however, Robert Kennedy also was struck down. On June 6, 1968, as he campaigned to follow in his brother's White House footsteps, he too was killed. Like his late brother, he was a victim of an assassin.

Less than four months later she became Mrs. Jacqueline Kennedy Onassis, the wife of one of the world's richest men, a Greek shipping magnate whose holdings are estimated at $800 million.

Like 'Madness'? Meet 'Scroogie'

Pitcher Tug McGraw was right in the middle of his good idea when they traded him from the New York Mets to the Philadelphia Phillies.

Never mind. McGraw, who is a left-handed screwball pitcher from Vallejo, kept at his notion of a comic strip about a lefthanded screwball pitcher.

His idea, and cartoonist Mike Witte's drawings, depict the kind of madness in sports that gave us Casey Stengel.

It isn't madness? Well, it was Tug McGraw who rallied the 1973 Mets to the pennant with his, "You gotta BELIEVE!" And did they trade him?

His "Scroogie" starts tomorrow in The Tribune sports pages.

Rights Stand Assailed

CDC Jeers, Cheers Bayh

By BILL MARTIN
Tribune Political Editor

FRESNO—Sen. Birch Bayh of Indiana, a 1976 Democratic presidential prospect, was roasted by delegates to the California Democratic Council convention Saturday for co-sponsoring a bill which they charged threatens civil liberties.

Bayh was jeered and booted when he arose to address 1,000 delegates who were spoiling for a fight over the issue.

Two CDC committees earlier in the day had passed resolutions attacking Senate Bill 1, which Bayh had co-sponsored and which the American Civil Liberties Union has branded as "the gravest threat we have yet had to our civil liberties."

During the day, delegates circulated petitions protesting the bill and stating that they were "shocked" that Bayh had co-sponsored it.

Bayh appealed to the delegates to try to "understand the legislative process," saying he was "working on the inside" to kill bad features in both the bill and in existing statutes.

He ended up promising the delegates that he would vote against the bill unless objectionable provisions in it could be eliminated.

"If I can't clean up the bill, it will not see the light of day," he promised applauding delegates.

Tagged as the Criminal Justice Reform Act of 1975, the measure, some delegates charged, would re-institute mandatory capital punishment in some cases; provide stiff penalties for leaking "national defense information" which had been administratively classified as secret, and reaffirm presidential wiretapping powers.

They also charged the bill would toughen laws against anyone "leading" a riot, criminalize the dissemination of material describing sexual intercourse or depicting nudity, and provide for fines

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Another School Fire in Concord

CONCORD — Firemen were called to the second Concord school fire within a week but were able to contain the flames and hold damage to several hundred dollars.

The fire, which broke out in a locker area of Oak Grove Intermediate School, 650 Minert Road, was "obviously arson," according to a Consolidated Fire District spokesman.

A passerby saw smoke at 8:23 p.m. and immediately called firemen. Ten firemen responded and contained the flames in a matter of minutes.

Mood of Isolation Sweeping Nation

By RAYMOND LAWRENCE
Foreign News Analyst

A new wave of isolationism is sweeping the United States.

Withdrawal of America from the vortex of world events, or even a drastic curtailment of its involvement, could have an historic impact on impending events and the future.

The change hasn't taken place yet but the portents are emerging and the stakes are staggering.

The latest manifestation started last week with Congress definitely rejecting the administration's initial moves to rescue embattled Cambodia and South Vietnam with more military aid.

President Ford's proposals were overwhelmingly defeated, despite desperate pleas and some cogent presentations by Administration leaders, including Secretary of State Henry Kissinger, who used the words tragic and disaster in the event of failure, and Secretary of Defense James Schlesinger.

Votes this week will tell the final story.

There are other manifestations of the developing isolationist attitude, but, first, some of the main reasons.

A major one is the recession and inflation.

Enormous prices and rising unemployment, with their attendant misery and strain, have induced a deep and widespread feeling that we ought to solve our problems at home before trying to settle those of other nations, like those in Asia or the turbulent Middle East.

This may not be rational but it's real.

Added to this there is the feeling that we have done enough for other nations.

Unwisely, Americans equate nations with individuals and expect gratitude, but world affairs don't work that way.

There is some basis for this viewpoint.

Since 1946 the United States has spent an estimated $164 billion for foreign aid to rebuild Europe and Japan (which we have done) and to help develop poor countries.

That probably is the most magnanimous record in world history, although some of the U.S. aid was used for diplomacy such as keeping nonaligned nations in that status and out of the Communist orbit in the 1950s and, more

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